

SENATE BILL 204

By Oliver

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 33, Part 2; Title 47; Title 65 and Title 66,
relative to consumer protection.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Homebuyer
Harassment Prevention Act."

SECTION 2. Tennessee Code Annotated, Title 47, Chapter 18, is amended by adding
the following as a new part:

47-18-5801.

As used in this part:

- (1) "Affiliate" means any person controlling, controlled by, or under
common control with such person;
- (2) "Division" means the division of consumer affairs in the office of the
attorney general and reporter;
- (3) "Government agency" means a branch, department, agency,
commission, or instrumentality of this state, or an official or employee of a
branch, department, agency, commission, or instrumentality of this state; and
- (4) "Person" means a natural person, individual, partnership, corporation,
trust, estate, incorporated or unincorporated association, and any other legal or
commercial entity however organized, including any affiliate.

47-18-5802.

(a)

(1) A person shall not contact a property owner more than one (1) time in a calendar year in connection with an unsolicited request or offer to buy the property owner's real property.

(2) The limitation described in subdivision (a)(1) applies to contact made through a telephone call, text message, email, mail, facsimile transmission, or another form of contact.

(b) When a person contacts a property owner in connection with an unsolicited request or offer to buy the property owner's real property, prior to making the solicitation, the person shall provide to the property owner:

- (1) The person's legal name;
- (2) The address from which the person operates;
- (3) A telephone number at which the person can be contacted; and
- (4) An email address at which the person can be contacted.

(c) If the contact between a person and a property owner is part of an ongoing negotiation between the person and the property owner, such contact is not an unsolicited request or offer until the property owner states that the property owner does not want to continue the negotiations, or, in the case of negotiations occurring through text message, writes that the property owner does not want to continue negotiations.

47-18-5803.

(a) If a property owner believes a person has violated § 47-18-5802, then the property owner may submit a complaint to the division. The division shall:

- (1) Begin reviewing a complaint submitted pursuant to this subsection (a) within twenty (20) business days from the date the complaint is submitted;
- (2) Send a written notice to the property owner that the division is reviewing the complaint; and

(3) Send a written notice to the property owner upon completion of the review describing the findings of the review, including whether the individual who contacted the property owner is a licensed real estate agent, and the actions taken, if any, as a result of the findings. The written notice must also include information about the purposes of, and the means by which, the property owner may enroll in the Tennessee Do Not Call Register as described in title 65, chapter 4, part 4.

(b)

(1) With regard to alleged violations of § 47-18-5802, the attorney general and reporter has all of the investigative and enforcement authority that the attorney general and reporter has under part 1 of this chapter. The attorney general and reporter may institute a proceeding involving alleged violations of this part in Davidson County circuit or chancery court or another venue otherwise permitted by law.

(2) The attorney general and reporter shall require the person being investigated pursuant to a complaint submitted in accordance with subsection (a) to disclose any affiliates of the person that have sent an unsolicited request to buy the property owner's real property.

(3) If a court finds that a person violated § 47-18-5802, then the court shall assess a civil penalty of up to two thousand dollars (\$2,000) per violation. The court may also order reimbursement to this state for the reasonable costs and expenses of investigation and prosecution of actions under this part, including reasonable attorneys' fees.

(4) For purposes of determining how many violations a person has committed, each contact beyond the permitted number under § 47-18-5802 by a person, including any affiliate of the person, is a separate violation.

47-18-5804.

In addition to the penalties provided under § 47-18-5803, a violation of § 47-18-5802, where a person knowingly causes any caller identification service to transmit misleading or inaccurate caller identification information, including caller identification information that does not match the area code of the person, to a property owner with the intent to violate or otherwise circumvent § 47-18-5802 is also a violation of § 47-18-2302, and subject to the remedies and penalties provided under part 23 of this chapter.

47-18-5805.

This part does not apply to:

(1) An individual who is licensed as a real estate agent in the state in which the real property about which the individual contacted the property owner is located; or

(2) A government agency.

SECTION 3. Tennessee Code Annotated, Section 47-18-2302(a), is amended by adding the following as a new subdivision:

(3) A person to knowingly cause any caller identification service to transmit misleading or inaccurate caller identification information, including caller identification information that does not match the area code of the person, to a subscriber with the intent to violate or otherwise circumvent § 47-18-5802.

SECTION 4. Tennessee Code Annotated, Section 65-4-405, is amended by deleting subsections (g) and (h) and substituting:

(g) The commission is authorized to allow access to the database and develop a fee schedule for access to the database by independent contractors and the entity that employs such contractors.

(h)

(1) As supplementary to the authority granted in this part, the attorney general and reporter, at the request of the commission, may bring an action in any court of competent jurisdiction in the name of the state against any person or entity relative to a violation of this part or any rules promulgated pursuant to this part. The courts are authorized to issue orders and injunctions to restrain and prevent violations of this part, and such orders and injunctions must be issued without bond. In any action commenced by the state, the courts are authorized to order reasonable attorneys' fees and investigative costs be paid by the violator to the state. An action brought by the attorney general and reporter may also include other causes of action, including a claim under the Tennessee Consumer Protection Act of 1977, compiled in title 47, chapter 18, part 1.

(2) If the commission is unable to enforce this part against a person or entity because of a suspected violation of § 47-18-2302(a), then the commission may refer the suspected violation to the attorney general and reporter for enforcement in accordance with §§ 47-18-2302 and 47-18-2304.

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it, and applies to prohibited conduct occurring on or after that date.